

Electricity Distribution Division III, Gonda v. State of U.P. & Others

High Court of Judicature at Allahabad (Lucknow Bench) · Single Judge · 30 May 2022 · WRIT - C No. 3291 of 2022 · **Notice to Indus Tower; CGRF order of 12.04.2022 stayed till the next listing; later adjournments; writ remains pending**

HEADNOTE

Where the distribution licensee challenges an order of the Electricity Consumer Grievance Redressal Forum, Gonda, which, on the licensee's account, turned down an amended bill of Rs 73,20,037 against Indus Tower Limited for a cellular-tower connection said to have been supplied from the urban feeder but paid at rural rates, and directed that no tariff be charged on account of delay, and the licensee quotes Clauses 6.12 and 6.13 of the U.P. Electricity Supply Code, 2005, the Court issues notice, permits a counter-affidavit, and stays the Forum's order dated 12 April 2022 till the next date of listing. That stay is continued on 14 July and 21 July 2022. The sheets of 4 August 2022 (adjourned for illness of the licensee's counsel) and 13 December 2022 (listed after three weeks as prayed by counsel for the contesting opposite party) do not repeat the stay and do not construe either clause. The writ remains pending.

FACTUAL SUMMARY

Electricity Distribution Division-III, Gonda petitioned the Lucknow Bench to quash the order dated 12 April 2022 of the Electricity Consumer Grievance Redressal Forum, Gonda. On the licensee's case, Indus Tower Limited had set up a cellular mobile tower at Kalyanpur, Rupaideeh, Gonda and taken connection Account No. 731803385518 on 21 October 2010. Supply was said to be from the urban feeder, while the consumer kept paying as for a rural connection, so the bill was amended to the urban tariff.

Indus Tower went to the Forum, which turned down a bill of Rs 73,20,037 and directed that no tariff be charged on account of the delay. The licensee said this was contrary to Clauses 6.12 and 6.13 of the U.P. Electricity Supply Code, 2005. On 30 May 2022 the Court issued notice, permitted a counter-affidavit, and stayed the Forum's order till the next listing. Later orders only adjourned the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.12

Licensee's challenge that a Forum order turning down an amended bill is contrary to Clause 6.12's appropriation of payments; not decided

QUESTION

Does Clause 6.12, which directs how a consumer's bill payment is adjusted, invalidate a Consumer Grievance Redressal Forum order turning down an amended bill of Rs 73,20,037?

HOLDING

Not decided. The licensee quoted Clause 6.12, headed in the quotation as '6.12 3(1) Application of the Amount Received', under which a consumer's payment is adjusted first towards arrears, then current charges, then miscellaneous charges, with electricity charges including electricity duty and late-payment surcharge adjusted in proportion of the arrear and of the current charges. Counsel said the Forum's order of 12.04.2022, turning down the bill of Rs 73,20,037, was contrary to that clause and to Clause 6.13. The Court issued notice to Indus Tower Limited, permitted a counter-affidavit, and stayed the Forum's order till the next date of listing. Clause 6.12 was not construed. ¶ [order of 30.5.2022](#)

QUALIFIER

Interlocutory (30.5.2022, Shree Prakash Singh, J.). The interim order was continued on 14.7.2022 and 21.7.2022 (Manish Kumar, J.). The sheets of 4.8.2022 and 13.12.2022 adjourn without repeating the stay. Writ remains pending on this source.

FLAG Unnumbered order-sheets treated by date: 30.5.2022 (Court No. 17; Shree Prakash Singh, J.; notice, counter, and stay till the next listing), 14.7.2022 and 21.7.2022 (Court No. 20; Manish Kumar, J.; list in the next cause list; interim order, if any, to continue), 4.8.2022 (same Court; adjourned for illness of Ms Neera Yadav; no continuation of the stay recited), and 13.12.2022 (Court No. 25; Rajan Roy, J.; listed after three weeks as prayed by Ms Maria Fatima for the contesting opposite party; no stay recited). Coram is the 30.5.2022 bench. The quotation is counsel's, not a construction by the Court. Catalog hits on UP-2005::4.8 and change-of-site-of-sanctioned-load-not-permitted-4.8(d) are false positives: Clause 4.8 and change of site are not in the orders. The duty-refund reading of Clause 6.12 is not in issue.

HOLDING-UNIT · UP-2005::6.13

Licensee's challenge that a Forum direction not to charge any tariff on account of delay is contrary to Clause 6.13; not decided

QUESTION

Is a Forum direction that the licensee shall not charge any tariff on account of delay contrary to Clause 6.13, under which rebate and surcharge for delayed payment are levied as per the applicable tariff order?

HOLDING

Not decided. The licensee quoted Clause 6.13, 'Rebate and Late Payment Surcharge', which provides that rebate and surcharge for delayed payment shall be levied as per the tariff order applicable, and submitted that the Forum's direction — that the electricity department will not charge any tariff on the basis of the delay — went against Clauses 6.12 and 6.13. The Court did not construe Clause 6.13. It issued notice, permitted a counter-affidavit, and stayed the Forum's order of 12.04.2022 till the next date of listing. ¶ [order of 30.5.2022](#)

QUALIFIER

Interlocutory (30.5.2022, Shree Prakash Singh, J.). Writ remains pending. Whether any rebate or late-payment surcharge was in fact included in the bill of Rs 73,20,037 is not stated.

FLAG Clause 6.13 is not a catalog provision key. Keyed as UP-2005::6.13 from the text counsel quoted. No Electricity Act section is cited.

PRINCIPLE TAGS

writ-stay-of-cgrf-order-at-instance-of-licensee On the licensee's writ against the Gonda Forum's order of 12.04.2022, the Court on 30.05.2022 stayed that order till the next date of listing. The stay was continued on 14.07.2022 and 21.07.2022. Clauses 6.12 and 6.13 were not construed. ¶ [order of 30.5.2022](#), [orders of 14.7.2022](#) and [21.7.2022](#)

procedural-listing-no-construction After notice, the writ was adjourned on 14.07.2022, 21.07.2022, 4.08.2022 (illness of the licensee's counsel) and 13.12.2022 (as prayed by counsel for the contesting opposite party). The urban-or-rural tariff dispute and Clauses 6.12 and 6.13 remain unadjudicated.
¶ [orders of 14.7.2022](#), [21.7.2022](#), [4.8.2022](#) and [13.12.2022](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INDUS TOWER'S CONNECTION ACCOUNT NO. 731803385518 AT KALYANPUR, RUPAIDEEH WAS SUPPLIED FROM THE URBAN FEEDER AND WAS LIABLE TO THE URBAN TARIFF RATHER THAN THE RURAL RATE IT HAD BEEN PAYING, AND WHETHER THE FORUM RIGHTLY TURNED DOWN THE AMENDED BILL OF RS 73,20,037

Stated only in the licensee's submission. The Court issued notice and stayed the Forum's order; it made no finding on feeder, tariff category, or the bill. ¶ [order of 30.5.2022](#)

NOT DECIDED — WHETHER THE FORUM'S DIRECTION THAT THE ELECTRICITY DEPARTMENT WILL NOT CHARGE ANY TARIFF ON THE BASIS OF THE DELAY IS CONTRARY TO CLAUSE 6.12 OR CLAUSE 6.13 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

The clauses were quoted by counsel for the licensee. The Court did not construe them. ¶ [order of 30.5.2022](#)

NOT DECIDED — HOW ANY PAYMENT WAS TO BE APPROPRIATED UNDER CLAUSE 6.12, AND WHETHER REBATE OR LATE-PAYMENT SURCHARGE WAS LEVIABLE UNDER CLAUSE 6.13 AND THE APPLICABLE TARIFF ORDER

Not reached. The order does not say that the bill of Rs 73,20,037 included duty, rebate, or late-payment surcharge.
¶ [order of 30.5.2022](#)

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.